

N O T QUITCLAIM DEED N O T

Anthony F. Delapa and Joanne C. Delapa as they are Trustees of the Delapa Realty Trust, Grantor, u/d/t dated March 9, 1967, recorded in the Norfolk Deeds in Book 4416, Page 326 for consideration paid of Ten Thousand (\$10,000.00) grant to

Salvatore Vinci and Margaret Vinci, Grantee, husband and wife as tenants by the entirety, of 65 Bay Colony Drive, Westwood, Massachusetts 02090

with quitclaim covenants the land situated on Mill Street, Westwood, Norfolk County, Massachusetts being designated and shown as Lot 2 on a plan entitled "Plan of Land in Westwood, Mass." by Pilling Engineering Company Inc. dated February 4, 1969, which plan is recorded with Norfolk Registry of Deeds as Plan No. 394 of 1969, Book 4594, Page 671, bounded and described according to said plan as follows:

NORTHEASTERLY	by Mill Street, as shown on said plan, 95 feet;
SOUTHEASTERLY	by land marked "Lot 3 Donald Hecht, Margaret M. Hecht" on said plan 565 feet more or less;
SOUTHERLY	by land marked "Lot 4 James F. Kearns, Francis J. Kearns" on said plan 235 feet more or less;
WESTERLY	in part by the end of Millbrook Road and in part by land marked "Richard P. Tschirch, Marylou Tschirch" on said plan, by three lines measuring 50 feet; 9.20 feet and 75.61 feet;
SOUTHWESTERLY	in part by said land marked "Richard P. Tschirch, Marylou Tschirch" on said plan in part by land marked Paul R. Kugel, Esther M. Kugel" on said plan and in part by land marked "Samuel DeBoer, Elizabeth P. DeBoer" on said plan, by two lines measuring 110.40 feet and 105 feet;
NORTHWESTERLY	by Lot 2A, as shown on said plan, 160.06 feet
NORTHERLY	by said Lot 2A, 231.44 feet;
NORTHEASTERLY	by said Lot 2A, 27.05 feet;
NORTHERLY	by said Lot 2A by two lines measuring 182.45 feet and 154.17 feet; and
NORTHWESTERLY	by said Lot 2A, 204.45 feet,

Containing according to said plan 174,240 square feet or 4.000 Acres.

Said premises are conveyed with the following right as appurtenant thereto:

- (a) To use in common with the Grantor and others lawfully entitled thereto for purposes of ingress and egress to and from said Lot 2B those portions crossing the Grantors remaining land consisting of a strip noted "Right of Way" on the plan hereinafter mentioned which lies within the limits of a parcel of land situated on Mill Street in Westwood, Norfolk County, Massachusetts, being designated and shown as Lot 2A on a plan entitled "Plan of Land in Westwood, Mass." by Pilling Engineering Company dated February 4, 1969 amended February 5, 1969, which

RECEIVED AND RECORDED
NORFOLK COUNTY
REGISTRY OF DEEDS
DEDHAM, MA

CERTIFY

Barry T. Hannon

BARRY T. HANNON, REGISTER

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plan is filed in Norfolk Registry of Deeds as Plan No. 394 of 1969, Book 4594,
Page 671 and said right of way being bounded and described as follows:

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Beginning at a point in the common boundary line of Lot 2A and Lot 2B, as shown on said plan, said point being a distance, measuring in three lines 204.45 feet, 154.17 feet and 182.45 feet, Southwesterly and Northwesterly from Mill Street, as shown on said plan, and bounded,

SOUTHWESTERLY
NORTHWESTERLY

by Lot 2B, as shown on said plan, 27.05 feet;
by Lot 2A, as shown on said plan, being a curved line, 80.49 feet;

NORTHERLY

again by said Lot 2A, by two lines measuring 150.75 feet and 128.47 feet;

NORTHWESTERLY

again by said Lot 2A, 222 feet more or less;

NORTHEASTERLY

by Mill Street, as shown on said plan, 25 feet more or less;

SOUTHEASTERLY

again by said Lot 2A, 145 feet more or less;

SOUTHERLY

again by said Lot 2A, by two lines measuring 141.32 feet and 50.88 feet;

SOUTHEASTERLY

again by said Lot 2A, being a curved line with a radius of 40.00 to the point where said curved line intersects with the common boundary line of said Lot 2A and said Lot 2B; thence turning and running N 84° 00' 00" W along said common boundary line to the point of beginning.

- (b) The appurtenant right to pass and repass is limited to private passenger automobiles, bicycles and foot passage only; trucks, vans, machinery and such non-private passenger vehicles are restricted to passage for fuel delivery, maintenance and repairs to and construction of a proposed single family residence.
- (c) The appurtenant right to pass over said "right of way" on Lot 2A requires the grantees to conduct prompt removal of all snow and ice from all pavement and the repair and maintenance of the now existing bituminous concrete pavement, on Lot 2A, in a reasonable condition for passage as aforesaid of a standard similar to accepted streets and ways in the Town of Westwood.
- (d) No vehicles or bicycles may be left standing or parked at any time on the aforesaid "right of way."
- (e) The appurtenant right conveyed about does not include any rights to lay pipes, change grades, erect structures in, on, over or under the said "right of way."

The premises hereby conveyed shall be subject to the following restrictions which shall be construed as covenants running with the land and shall be binding and in full force and effect until the first day of January in the year 2025.

- (1) Said Lot 2B shall be used only for the purpose of a dwelling house designed for the occupancy of and used by one family only.

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(2) No business of any nature, whether mercantile, manufacturing, professional or other shall be allowed or conducted upon said premises.

(3) No commercial vehicle shall be regularly parked on the premises nor shall any house trailer, camper or boat and/or trailer, or other recreational vehicle be allowed to remain on the premises.

(4) No livestock, poultry or pigeons shall be kept on the premises, household pets to be excepted from the restrictions.

The Grantors expressly reserve the following rights, privileges and easements, forever, in, over, under, upon or through said Lot2B:

- A. To use the areas designated and shown as a pond on Lot2B on said plan for skating, sledding, bathing, swimming, boating, fishing, or other recreational purposes and for the purpose of access to the same the right, privilege and easement, forever, to pass and repass by foot, bicycle, horse or horse-drawn sleigh or carriage, over that portion of Lot 2B.

For title of Grantor see Deed recorded at Book 7211, Page 711.

Witness my hand and seal this 17th day of July, 2000.


Anthony F. Delapa, Trustee


Joanne C. Delapa

COMMONWEALTH OF MASSACHUSETTS

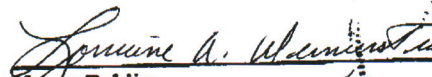
SS. Norfolk County

July 17, 2000

Then personally appeared the above-named Anthony F. Delapa and Joanne C. Delapa, Trustees of the Delapa Realty Trust and acknowledged the foregoing to be their free act and deed, before me,

CANCELLED
DEDHAM
DEEDS REGISTRY
JUL 27 2000

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Notary Public:
My Commission Expires: 8/01



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FEE \$45.60

CASH \$45.60

